

DRISTI CASE FILE - FICTIONAL DOCUMENT PACK

IN THE COURT OF THE JUDICIAL FIRST CLASS MAGISTRATE-I, KOLLAM

C.C. / S.T. No. ST/412/2025 (arising out of CMP/1842/2025)
Complaint under section 138 of the Negotiable Instruments Act, 1881

OBJECTIONS TO PROCESS

Filed by the accused

Sunil Varghese,
aged 42, 14 Example Lane, Asramam, Kollam 691002
... **Complainant**

Versus

Anand Traders, a sole proprietorship,
represented by its proprietor Arun Das, aged 39,
25 Sample Market Road, Chinnakada, Kollam 691001
... **Accused**

Case title	Sunil Varghese v. Anand Traders
Case numbers	CMP/1842/2025 ST/412/2025
Filing number	KL-DUMMY-001386-2025
Court	Judicial First Class Magistrate Court-I, Kollam
Filed by	Adv. P. Balachandran, counsel for the accused
Process objected to	Summons issued on 23 June 2025
Submission ID	KL-DUMMY-001386-2025-DS2

The accused respectfully submits the following objections:

- The accused is a sole proprietorship concern represented by its proprietor, Arun Das, who has entered appearance through counsel and is on bail.
- The summons issued on 23 June 2025 was addressed to the concern at 25 Sample Market Road, Chinnakada, Kollam. The accused submits that the description of the addressee in the process does not reflect the capacity in which he is sought to be proceeded against.
- The reply to the statutory demand notice, sent on 2 May 2025, disputed the liability and stated that the accounts between the parties required adjustment. That reply is on record and has not been dealt with in the complaint.
- The accused does not admit that the cheque was issued in discharge of a legally enforceable debt as alleged, and reserves the right to establish the contrary at the trial.
- These objections are filed without prejudice to the appearance already entered and to any defence open to the accused at the trial.

Submission

It is submitted that these objections may be taken on record and considered at the appropriate stage of the proceedings.

Place: Kollam Date: 2 August 2025

Adv. P. Balachandran

Counsel for the accused

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